

24STCV13689 24STCV13689

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 24STCV13689 Hearing Date: August 17, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

17, 2026 TRIAL DATE: November 15, 2027

CASE: Samantha Brustin v. Petrol Advertising, Inc., et al.

CASE NO.: 24STCV13689

ORDER TO SHOW CAUSE RE: RE

CONTEMPT FOR DEFENDANT'S WILLFUL DISOBEDIENCE OF THE PROTECTIVE ORDER ENTERED
BY THE COURT ON JULY 28, 2025

ORDER

TO SHOW CAUSE RE: RE MANDATORY INTERNET SWEEP

ORDER

TO SHOW CAUSE RE: RE WHETHER DEFENDANT'S COUNSEL MUST CREATE CLE HIPAA COMPLIANCE
VIDEO

I. BACKGROUND

Plaintiff

Samantha Brustin ("Brustin" or "Plaintiff") brings this employment action
against her former employers, defendants Petrol Advertising, Inc. ("Petrol")
and Enad Global 7 AB (PUBL) ("EG7") (collectively, "Defendants"). Brustin worked for Defendants from November

2022 until she was terminated in April 2024.

Brustin alleges that, during her employment, she was subjected to sexual harassment, a hostile work environment, and retaliation for taking CFRA leave. Plaintiff was terminated a month after she returned from medical leave.

On

June 2, 2026, Plaintiff filed an ex parte application for an order (1) sealing portions of the documents filed by Petrol on May 27 and 28, 2026; (2) issuing an Order to Show Cause (OSC) Re Contempt for Defendant's willful disobedience of the protective order entered by the court on July 28, 2025; (3) issuing an OSC Re Mandatory Internet Sweep to immediately contact all online legal databases and docket aggregators (including but not limited to Trellis, Law360, Lexis, and Westlaw) and make reasonable, documented efforts to contact all known online legal databases and docket aggregators, including Trellis, Law360, Lexis, and Westlaw, and request removal, suppression, or replacement of any scraped public versions of the confidential medical filings pursuant to Code of Civil Procedure section 128 at the sole expense of Defendant and their counsel of record; (4) issuing an OSC Re whether Jackson Lewis, P.C. and Henry Sanchez, Esq., within ninety days of the Court's order, must create, produce, and have Mr. Sanchez star in a one-hour Continuing Legal Education video focused on HIPAA compliance and the protection of third-party privacy rights for this Court's review and approval, and shall subsequently file a declaration under penalty of perjury within six months from the video's completion date confirming that all attorneys employed by Jackson Lewis P.C. have watched the video in its entirety; and (5) for other such relief as the Court deems just, necessary, and proper.

On June 4, 2026, the court granted in part the ex parte application and ordered stricken Petrol's oppositions and supporting materials filed on May 27 and 28, 2026 and directed Petrol to re-file those documents consistent with the procedures outlined in the Protective Order. The court also set the following OSCs:

1. OSC Re Contempt for Defendant's willful disobedience of the protective order entered by the court on July 28, 2025;

2. OSC Re Mandatory Internet Sweep

3. OSC Re Whether Defendant's Counsel Must Create CLE
HIPAA Compliance Video.

The court also ordered Defense Counsel to file a
declaration addressing the above OSCs.

On June 12, 2026, Defense counsel filed declarations.

On June 29, 2026, the parties appeared before the court. In advance of the hearing, the court issued a tentative ruling stating it was not inclined to hold Defense Counsel in contempt nor require Defense Counsel to create a CLE HIPAA compliance video. Defense counsel represented that they would hire a professional firm to conduct the internet sweep. The court stated it was considering a monetary sanction but would wait to learn of the cost of the internet sweep. The OSCs were continued.

On July 14, 2026, Defense counsel filed another declaration.

II. DISCUSSION

Defense
counsel state they have hired Erase Technologies, LLC dba Guaranteed

Removals to conduct the internet sweep at the cost of
\$3,000. (Steffan Decl., ¶15.) The sweep will be completed in 60 days. (Id.)

Given Defense counsel's efforts to remove Plaintiff's
information and the court's previous findings that Defense counsel's failure to
observe the terms of the Protective Order was not willful, the court declines
impose any monetary sanctions.

III. CONCLUSION

Based on the foregoing, the OSCs are DISCHARGED.

Defendant
is ordered to give notice, unless waived.

Dated: August 17, 2026

Brock T. Hammond

Judge of the Superior Court